

Why Enforce? Police Discretion under Non-Prosecution Policies

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Outline

- 1 Motivation
- 2 Theory
- 3 Setting
- 4 Data & Methods
- 5 Results
- 6 Discussion
- 7 Next Steps

Why Misdemeanors Matter

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- Arrest/prosecution for minor offenses can have serious consequences (lost time, political disengagement, fines & fees, decrease in earnings, arrest record, criminal record, physical harm, death) (White 2022; Kohler-Hausmann 2019; Jain 2015; Agan, Doleac, and Harvey 2023)

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- Enforcement decisions aren't equitable — racialized misdemeanor policing at the neighborhood and individual level (M. Stevenson and Mayson 2018; Soss and Weaver 2017; Baumgartner, Epp, and Shoub 2018)

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- Preventing criminal records reduces recidivism (Agan, Doleac, and Harvey 2023)

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- Prosecutors have “agenda control” regarding the courts: deciding which cases are prosecuted and on what charges (Sklansky 2016)
- In theory, police alter their behavior in the shadow of prosecutors’ charging preferences (Clark 2025), and prosecutors can check the reach of misdemeanor policing (Natapoff 2023)

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- “We don’t pick and choose which laws we follow” — Hennepin County Chiefs of Police Association

Models of Police Behavior

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Research Question

- How do police officers make discretionary enforcement decisions for low-level offenses?

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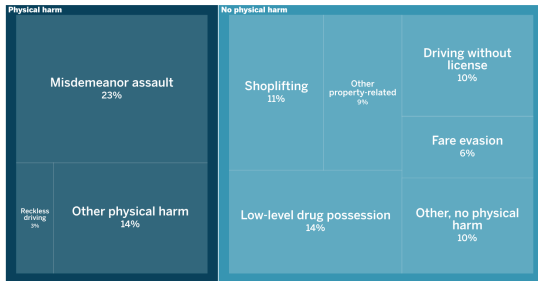
- How do police officers make discretionary enforcement decisions for low-level offenses?
- Specifically: Do changes in prosecution change enforcement behavior?

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- Same police leadership, unions, mayor, and state and city law — only prosecution policy varies



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- These policies publicly pre-committed to stop prosecuting specific low-level, high-discretion offenses
- Targeted offenses constituted roughly 12% of Bronx and 6% of Manhattan misdemeanor arrests and summons in the previous 5 years

The Test: Non-Prosecution Policies in NYC

Both the Bronx and Manhattan	Bronx Only	Manhattan Only
Trespass (PL § 140.05)	Criminally Possessing a Hypodermic Instrument (PL § 220.45)	Criminal Trespass in the Second Degree (PL § 140.15)
Criminal Trespass in the third degree (PL § 140.10)	Loitering for Prostitution (PL § 240.37)	Prostitution (PL § 230.00)
Fare Evasion (PL § 165.15(3))	Unlawful Assembly (PL § 240.10)	Resisting Arrest (PL § 205.30)
Disorderly Conduct (PL § 240.20)	Criminal Possession of Marijuana in the Fourth Degree (PL § 221.15)	Obstructing Governmental Administration in the Second Degree (PL § 195.05)
Possession of a Knife (NYC Administrative Code 10-133)		Criminal Possession/Sale of Marijuana in the Third Degree (PL § 222.30, 222.50)
(Aggravated) Operation of a Vehicle Without a License (VTL § 509, 511)		Adultery & Obscenity (PL § 255.17 & PL § 235.00)

◀ Other non-criminal offenses* 🔍 ↻

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 - Area-weighted interpolation of ACS/NYC data to match precincts: race, log ratio of jobs to residents, gentrification index

Instincts Behind the Method

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Leads/Lags

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- Partial pooling balances fit at both the precinct and borough level, absorbing borough-level shocks

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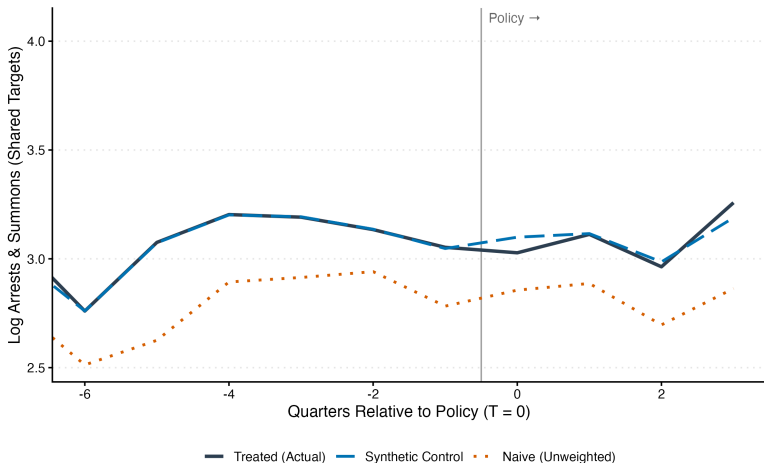
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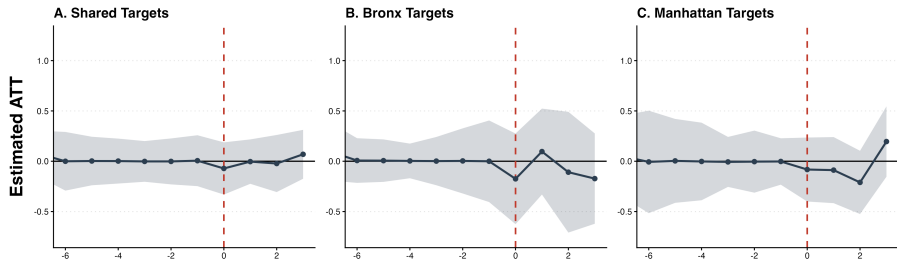
Pre-Treatment Fit: Synthetic Control vs. Naive Comparison



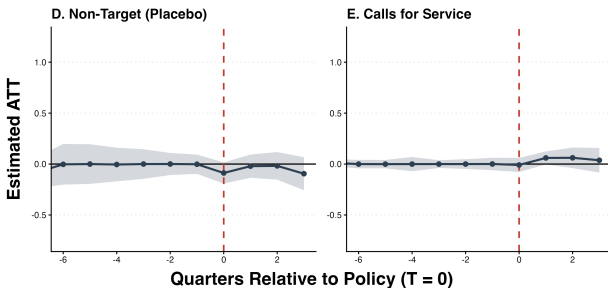
Manhattan Fit

Bronx Fit

Results: Target Offenses



Results: Non-Target Offenses + Calls for Service



Results: ATTs

- Changes in every outcome fail to meet standard levels of statistical significance

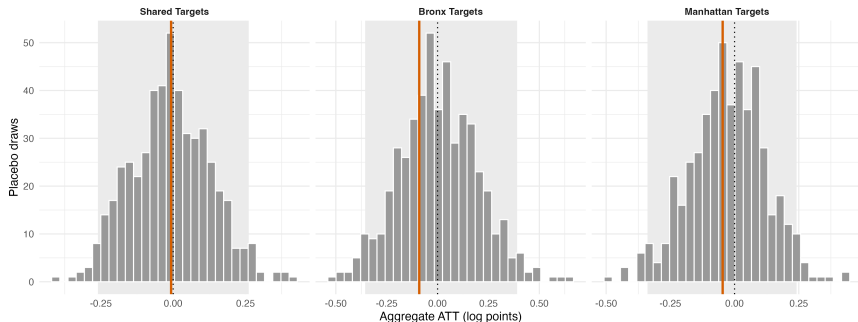
Term	Shared Targets	Bronx Targets	Manhattan Targets	Non-Target	Calls for Service
Aggregate ATT (log points)	-0.01 (0.10)	-0.09 (0.16)	-0.05 (0.12)	-0.06 (0.05)	0.04 (0.04)
<i>p</i> -value	<i>p</i> = 0.941	<i>p</i> = 0.585	<i>p</i> = 0.697	<i>p</i> = 0.242	<i>p</i> = 0.355
Scaled Global L2 Imbalance	0.009	0.005	0.019	0.037	0.011
Scaled Individual L2 Imbalance	0.219	0.077	0.196	0.168	0.139
Pooling (ν)	0.392	0.765	0.522	0.597	0.622
N (Units)	34 Tr / 43 Co	12 Tr / 65 Co	22 Tr / 55 Co	34 Tr / 43 Co	34 Tr / 43 Co

Leads/Lags

Covariates

Monthly

Results: Placebo Tests



- Gray bars: distribution of 500 placebo ATTs (random draw of untreated precincts with true policy dates)
- Light gray shading: Middle 95% of placebo ATTs
- Orange lines: Actual estimated ATTs

Results: Precision

Model	95% CI (log)	MDE @ 80% Power
Shared Targets	[-0.200, 0.186]	24.1%
Bronx Targets	[-0.410, 0.230]	36.7%
Manhattan Targets	[-0.282, 0.189]	28.6%
Non-Target	[-0.149, 0.039]	12.6%
Calls for Service	[-0.040, 0.115]	10.5%

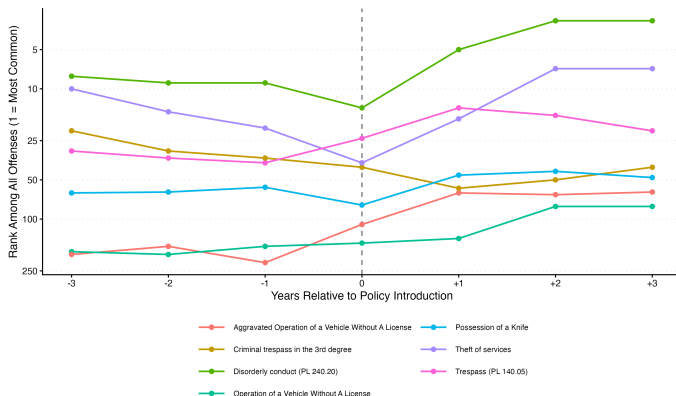
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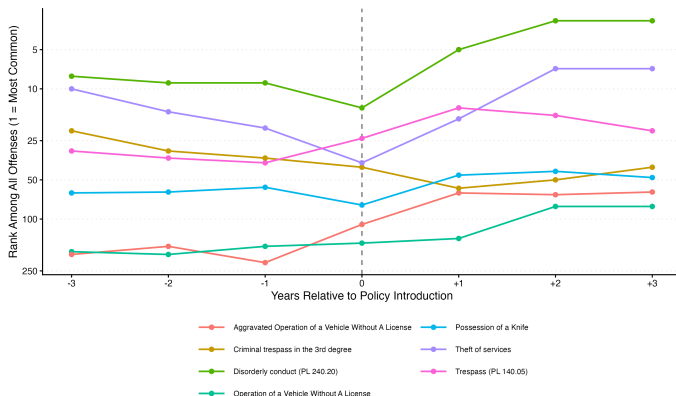
- Rules out declines larger than about 18% (shared targets), 34% (Bronx), and 25% (Manhattan)
- Even at the edge of the shared targets interval, four in five arrests and summons continued after prosecutors publicly committed to declining them

Relative Frequency



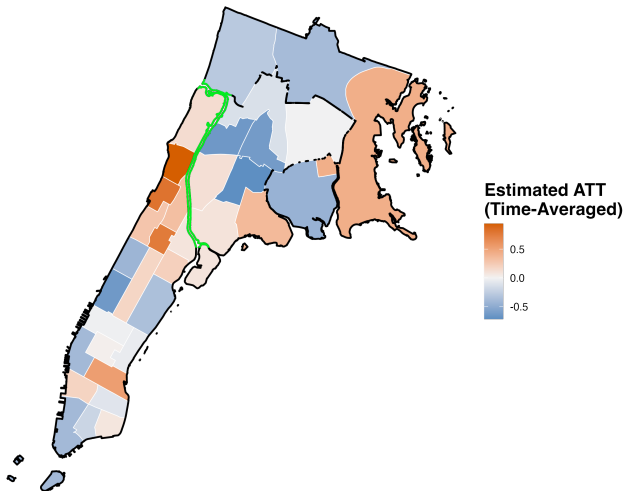
- Any decrease in target enforcement was accompanied by a drop in enforcement of non-target offenses

Relative Frequency



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- Many target offenses became relatively *more* common after the policies

Heterogeneity



Heterogeneity

	(1)	(2)	(3)	(4)
Constant	-0.084 (0.149)	-0.010 (0.097)	0.010 (0.073)	0.490 (0.576)
% Black & Hispanic Residents	0.133 (0.225)			
Commercial-Residential Ratio (log)		0.004 (0.100)		
Gentrification Index			0.174 (0.130)	
2019 Average Arrests				-0.087 (0.100)
N (Precincts)	34	34	34	34
R ²	0.011	0.000	0.053	0.023

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- Similar SD for models with placebo treatment times suggests variation is modeling noise

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- Indicative of old-fashioned watchman-style policing
- While small declines in enforcement of target offenses are plausible, declining enforcement of other offenses rendered many target offenses relatively *more* common
- Police behave less like a link in the chain of law enforcement and more like an independent bureaucracy with its own reasons to act

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- Prosecutors may be targeting exactly the offenses where enforcement yields the most non-punishment utility
- Contributes to body of work finding that targeted criminal justice reforms can't shift entrenched institutions. Stabilizing forces in the system push back (M. T. Stevenson 2023)

Other Projects

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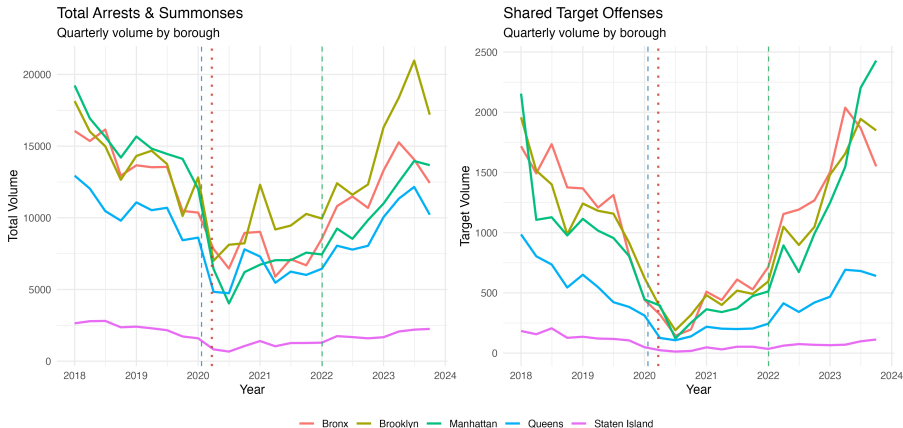
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- **Electoral Cycles in Criminal Sentencing:** When, where, and why do judges decide on longer sentences as elections grow closer?

Thank you!

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Appendix: Misdemeanor Arrest Trends (COVID)



Vertical lines: Bronx policy (Jan 2020), NYS COVID PAUSE (Mar 2020), Manhattan policy (Jan 2022).

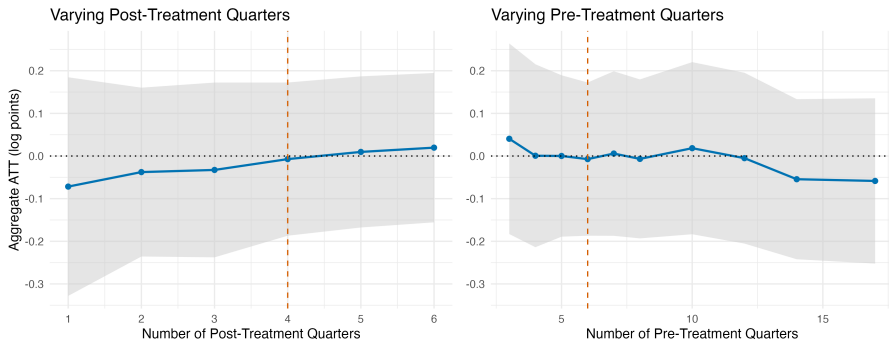
Appendix: Covariate-Adjusted Models

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<i>p</i> -value	<i>p</i> = 0.273	<i>p</i> = 0.273	<i>p</i> = 0.247	<i>p</i> = 0.033	<i>p</i> = 0.961
Scaled Global L2 Imbalance	0.026	0.056	0.564	0.054	0.040
Scaled Individual L2 Imbalance	0.436	0.159	0.583	0.286	0.164
Pooling (ν)	0.146	0.515	0.343	0.258	0.387
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Synthetic control weights balance share Black and Hispanic residents, average 2019 arrests, average household income, and NYCHA density. Precinct 22 (Central Park) dropped. Pre-treatment fit is substantially worse than in the main models.

Appendix: Sensitivity to Leads and Lags

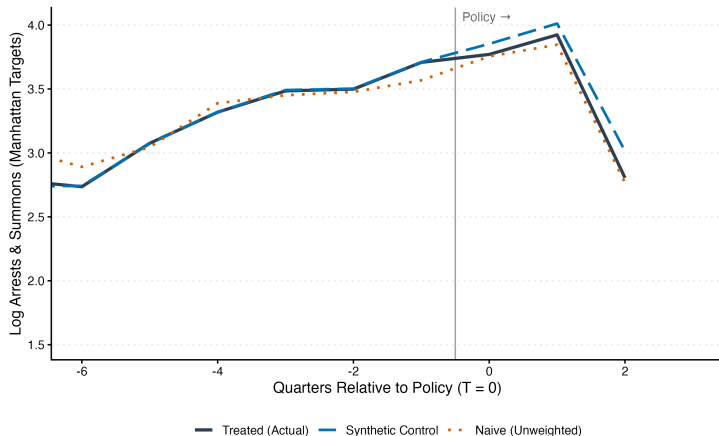
Aggregate ATT, Shared Targets Model



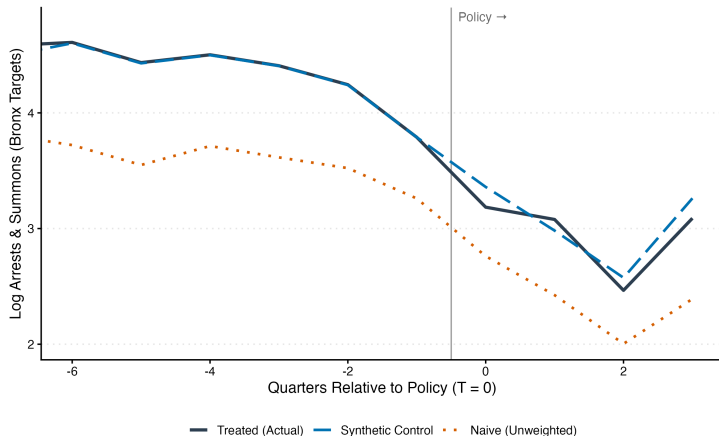
Appendix: Monthly Groupings

Term	Shared Targets	Bronx Targets	Manhattan Targets	Non-Target	Calls for Service
Quarterly (91-day periods)					
Aggregate ATT	-0.01 (0.10)	-0.09 (0.16)	-0.05 (0.11)	-0.06 (0.05)	0.04 (0.04)
<i>p</i> -value	<i>p</i> = 0.940	<i>p</i> = 0.584	<i>p</i> = 0.686	<i>p</i> = 0.261	<i>p</i> = 0.360
Monthly (28-day periods)					
Aggregate ATT	0.00 (0.09)	-0.19 (0.19)	0.04 (0.12)	-0.04 (0.06)	0.05 (0.04)
<i>p</i> -value	<i>p</i> = 0.973	<i>p</i> = 0.334	<i>p</i> = 0.700	<i>p</i> = 0.436	<i>p</i> = 0.184
Scaled Global L2 Imbalance	0.063	0.100	0.090	0.257	0.100
Scaled Individual L2 Imbalance	0.436	0.217	0.519	0.256	0.154
Pooling (ν)	0.230	0.496	0.230	0.362	0.492
N (Units)	34 Tr / 43 Co	12 Tr / 65 Co	22 Tr / 55 Co	34 Tr / 43 Co	34 Tr / 43 Co

Appendix: Manhattan Pre-Treatment Fit



Appendix: Bronx Pre-Treatment Fit



Appendix: Goldrosen 2026

- This paper approaches a similar question, but with differing method and results
- Simple DiD examines the impact of the Manhattan policy only, considers the Bronx an untreated borough
- Finds decrease in arrests, increase in summons, no impact on non-target offenses
- Similar finding of heterogeneity between precincts
- Breaks out arrests and summons into different analyses, needs further theoretical development